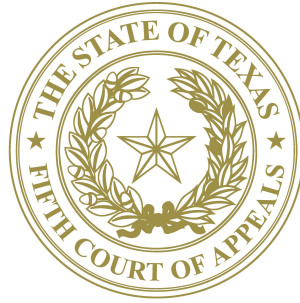




Court of Appeals
Fifth District of Texas at Dallas
Legislative Appropriation Request 2028 - 2029





Legislative Appropriations Request for Fiscal Years 2028 - 2029

*Submitted to the
Governor's Office of Budget and Planning and Legislative Budget Board*

by

Fifth Court of Appeals

at

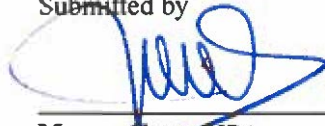
Dallas, Texas

J.J. Koch, Chief Justice

Justice Bonnie Lee Goldstein – Place 3
Justice Craig Smith – Place 6
Justice Dennise Garcia – Place 8
Justice Emily Miskel – Place 13
Justice Maricela Moore Breedlove – Place 4
Justice Nancy Kennedy – Place 7

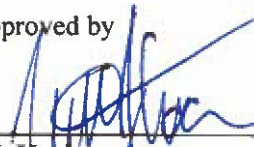
Justice Tina Clinton – Place 9
Justice Jessica Lewis – Place 2
Justice Gino J. Rossini – Place 11
Justice Cynthia M. Barbare – Place 5
Justice Earl Jackson – Place 10
Justice Mile Lee – Place 12

Submitted by



Myrna Gazo, MPA
Court Business Administrator

Approved by



J.J. Koch
Chief Justice

September 3, 2026
Amended



CERTIFICATE

Agency Name Fifth Court of Appeals at Dallas

This is to certify that the information contained in the agency Legislative Appropriations Request filed with the Legislative Budget Board (LBB) and the Governor's Office Budget Division (Governor's Office) is accurate to the best of my knowledge and that the electronic submission to the LBB via the Automated Budget and Evaluation System of Texas (ABEST) and the PDF file submitted via the LBB Document Submission application are identical.

Additionally, should it become likely at any time that unexpended balances will accrue for any account, the LBB and the Governor's Office will be notified in writing in accordance with Article IX, Section 7.01 2026–27 General Appropriations Act (89th Legislature).

Chief Executive Officer or Presiding Judge

Signature

J.J. Koch

Printed Name

Chief Justice

Title

September 3, 2026 -Amended

Date

Board or Commission Chair

Signature

Printed Name

Title

Date

Chief Fiscal Officer

Signature

Myrna Gasc , MPA

Printed Name

Court Business Adminsitrator

Title

September 3,, 2026 Amended

Date



Legislative Appropriations Request (LAR) – Appropriation Years 2028 - 2029
Fifth District Court of Appeals, 225

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Administrator's Statement

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Automated Budget and Evaluation System of Texas (ABEST)

225 Fifth Court of Appeals District, Dallas

90TH LEGISLATIVE SESSION ADMINISTRATOR'S STATEMENT

Administrator's Statement
For Fiscal Years 2028 and 2029
90th Legislature

The core function of Texas' intermediate appellate courts is to process, review, and decide by written opinion every appeal that is filed with them from trial courts, in civil and criminal cases, across numerous counties. These appeals include every substantive area of civil and criminal law—except for death penalty cases—and many of them must be decided on an expedited basis as mandated by the Legislature and the rules of appellate procedure.

The courts of appeals must also resolve a large number of original proceedings each fiscal year seeking extraordinary relief—such as a writ of habeas corpus, mandamus, prohibition, injunction, or quo warranto. Original proceedings, which are often filed during the pendency of litigation, commonly have voluminous records and must also be decided on an expedited basis. And many of them include a request for emergency temporary relief which must be addressed immediately.

Against this backdrop, Texas has gained more residents than any other state during the 21st century. Since 2000, the population of Texas has increased by more than 52%. More than 31 million people now live in Texas. And the vast majority are adults who look to the judiciary for resolution of their disputes as guaranteed by our Constitution. The Legislature has responded to this big increase population by creating nearly 200 new trial courts across Texas. And the Bench and the Bar have taken important steps to increase access to justice for all Texans.

New case filings in the courts of appeals began to return to their pre-COVID levels in fiscal year 2022. During the next three fiscal years (FY '23, FY '24, and FY '25), new case filings in the courts of appeals increased each fiscal year by between 4% to 8%. This is consistent with the increase in new cases experienced by the federal courts of appeals from 2022 to 2025 at nearly 4.4%.

This all changed for Texas' courts of appeals in fiscal year 2026. New case filings are increasing in FY '26 from FY '25 by 19%. And they are increasing by about 31% from FY '24—which was the last fiscal year before the 89th Legislative Session. The 5th Court of Appeals has seen a 31% increase from FY24 to FY26.

(SEE EXHIBIT A IN ADMIN STATEMENT SUPPLEMENTAL PDF PAGE)

When equalization transfers are taken into account, every court of appeals in Texas (except the 15th court which has different jurisdictional requirements) is experiencing these large increases in new case filings—which are anticipated to continue for the foreseeable future. The 5th Court of Appeals recived a 22% increase after transfers.

(SEE EXHIBIT B IN ADMIN STATEMENT SUPPLEMENTAL PDF PAGE)

Two important components of this big increase in new case filings are original proceedings and pro se appeals. Together, they constitute 54% of the new cases filed in the courts of appeals in FY '26. The 5th Court of Appeals has seen an extraordinary increase of 106% in original proceedings.

Original proceedings are increasing in FY '26 from FY '25 by 49%. And they are increasing in FY '26 from FY '24 by 83%.

(SEE EXHIBIT C IN ADMIN STATEMENT SUPPLEMENTAL PDF PAGE)

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225 Fifth Court of Appeals District, Dallas

Meanwhile, pro se appeals are increasing in FY '26 from FY '25 by 36%. And they are increasing in FY '26 from FY '24 by 68%. The 5th Court of Appeals has seen amodest, but still significant increas of 38% in new cases filed by pro se litigants.

(SEE EXHIBIT D IN ADMIN STATEMENT SUPPLEMENTAL PDF PAGE)

Yet, in the face of this dramatic growth, the number of staff attorneys (and other staff) at the courts of appeals who assist the justices with their workload has remained largely the same.

A key factor in handling the increasing workload without additional justices is the employment of highly skilled and trained staff attorneys (and other staff). They maximize the productivity of justices by processing complex cases, researching and drafting preliminary drafts of orders and opinions, disposing of voluminous motions, and managing accelerated and emergency matters.

The large population growth across the State and the magnitude of new case filings, in concert with an ever-increasing number of case types requiring expedited review, make it clear that the courts of appeals require additional staff attorneys, and/or other staff, to manage their growing dockets and to efficiently provide the timely, high-quality justice to which all citizens of Texas are entitled.

In that regard, the courts of appeals, collectively, began in the 79th and 80th Legislative Sessions to work toward a zero-based budget model referred to as “Similar Funding for Same-Sized Courts.” This model quantified the funding required to meet the personnel and operational needs of the courts, thus enabling the courts to accomplish their core function and meet their performance measures. The Similar Funding for Same-Sized Courts initiative was fully funded for the first time in 2015, and the courts had been operating under the same zero-based budget model and funding levels until the 88th Legislative Session when the Legislature increased the budgets for the intermediate appellate courts.

Based upon a template of same-size courts, the courts of appeals are now asking the Legislature for additional staff attorneys, and/or other staff, to match the nearly 31% increase in new case filings since FY '24—subject to the particularized request of each court of appeals.

COURT SIZE	# OF NEW STAFF/ATTORNEYS AND/OR STAFF
13 Justices	9
9 Justices	8
6-7 Justices	6
3-4 Justices	4

Without a sufficient number of qualified staff attorneys, and/or other staff, the courts of appeals are largely unable to handle the increasing volume of new case filings each fiscal year and comply with Legislative mandates to give accelerated and preferential treatment to certain appeals (such as parental-termination and juvenile-certification appeals under the Family Code, mental-health appeals under the Health and Safety Code, and interlocutory appeals under the Civil Practice and Remedies Code) and also comply with the legislatively mandated Clearance Rate requirement.

The courts of appeals are appreciative of the increased funding for existing staff attorneys received last session. It is important and enables the courts of appeals to hire and retain qualified individuals for their existing staff attorney positions, and other staff. The courts of appeals are now faced with the need to increase the number of

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their staff attorney positions, and/or other staff, in order to keep pace with the growth of Texas and the large increase in new case filings. But they currently lack the funding to do so.

And now the courts of appeals have been instructed to reduce their base appropriation request for the 2028-29 biennium by 3%. Unlike other state agencies, 96.5% of each court of appeals' budget, on average, is dedicated to salaries and benefits. This budget reduction would thus result in a disproportionate and highly negative impact on the courts of appeals. The only way to absorb such a budget reduction is to cut court staff. This is counter-intuitive and unsustainable in light of the substantial increase in new case filings. Additionally, there is virtually no benefit to the State from a 3% budget cut on the courts of appeals. Indeed, funding for all of the courts of appeals comprises less than 0.04% of the State budget as a whole. And a 3% budget cut on the courts of appeals would approximately yield only a 0.002% reduction in the entire State budget.

Mindful of that, and of the critical role that the courts of appeals perform for all Texans, additional funding for additional staff attorneys, and/or other staff, as specifically requested by each court of appeals, is now necessary for the courts of appeals to ensure the efficient and timely administration of justice going forward.

EXCEPTIONAL ITEM #1: RESTORE THE 3% BUDGET CUT.

To address the highly negative and disproportionate impact of the required 3% reduction on the courts' funding, especially in light of the substantial increase in new case filings in Fiscal Year '26, the courts of appeals respectfully submit Exceptional Item #1 requesting the restoration of the 3% budget reduction so that their baseline funding will be the Fiscal Year 2027 budgeted levels. The Fifth Court of Appeals therefore respectfully requests a restoration to General Revenue funding in the amount of \$547,541.

EXCEPTIONAL ITEM #2: ADDITIONAL FULL TIME STAFF ATTORNEYS DUE TO THE SUBSTANTIAL INCREASE IN NEW CASE FILINGS.

Due to the substantial increase in new case filings that the courts of appeals are experiencing in FY '26, and which are expected to continue for the foreseeable future, and based on the template of same-size courts above, the Fifth Court of Appeals respectfully submits its Exceptional Item # 2 in which it requests funding for nine (9) additional full time staff attorneys.

These additional staff attorneys are necessary because the Fifth Court of Appeals has experienced a 19% increase in new case filings from FY '25 to FY '26. And a 31% increase from FY '24 to FY '26. As mentioned above the 5th Court of Appeals has received an extraordinary increase of 106% in Original Proceedings. These increases are beyond the current capacity of the Fifth Court of Appeals to handle and comply with the Legislative mandates to give accelerated and preferential treatment to certain appeals (such as parental-termination and juvenile-certification appeals under the Family Code, mental-health appeals under the Health and Safety Code, and interlocutory appeals under the Civil Practice and Remedies Code) and also comply with the legislatively mandated Clearance Rate requirement.

The total anticipated expense for these requested FTEs in Biennium 2028-29 for the Fifth Court of Appeals is: \$1,511,957 for AY28 and 1,383,212 FOR AY29.

(SEE EXHIBIT E IN ADMIN STATEMENT SUPPLEMENTAL FOR A BREAKDOWN OF EXCEPTIONAL ITEM #2 REQUEST)

EXCEPTIONAL ITEM #3: THE SUPREME COURT'S REQUEST FOR 3% INCREASE IN STAFF SALARIES FOR AY28 & AY29

The Fifth Court of Appeals relies on experienced attorneys and professional staff to ensure the efficient administration of justice and the timely resolution of cases .

Administrator's Statement

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However, rising living costs and increasing competition from other state agencies and the private sector continue to make recruitment and retention more difficult. To remain competitive and preserve an experienced, high-performing workforce, the Fifth Court of Appeals requests a 3% increase in staff salaries in Fiscal Year 2028 and an additional 3% increase in Fiscal Year 2029. To the extent that the Legislature approves that exceptional item in whole or in part for the supreme court, then the court of appeals would respectfully request in this Exceptional Item #3 the same increase, or such other increase as is approved for the supreme court and its judicial staff. This is necessary to keep the court of appeals' staff salaries within \$5,000 of the staff salaries at the supreme court.

SPECIAL PROVISIONS/RIDER EXCEPTION REQUESTS:

The courts of appeals also request the following with regard to the SPECIAL PROVISIONS – JUDICIARY found in Article IV (beginning at p. IV-42 of the General Appropriations Act for the 2026-27 Biennium) concerning across-the-board riders:

1. Retain Special Provisions – Judiciary, Sec. 5, Interagency Contracts for Assigned Judges for Appellate Courts
2. Retain Special Provisions – Judiciary, Sec. 9, Appellate Court Transfer Authority

Historically, the Legislature has granted the courts' exemption from certain limitations in the General Appropriations Act. The Legislature has also granted the courts the authority to carry over unexpended budget balances between years within the biennium. The flexibility afforded by these measures enhances the courts' management ability, and we seek continuation of these budget features.

3. Add Special Provision – Traveling Justices and Judges and Mileage Reimbursement

Appellate court justices and judges that travel for official state business in a personal vehicle should be exempt from the requirement to complete a comparison worksheet showing that mileage reimbursement for travel in a personal vehicle is more cost-effective than the use of a rental car (as is currently the case for children's court and business court state who travel regularly for official state business). (See Article IV Appropriation for OCA, Texas Judicial Council – Item No. 7 entitled "Mileage Reimbursement for Children's Courts and Business Court Staff).

ADDITIONAL STATEMENTS OF SUPPORT:

In order for the courts of appeals to function efficiently, it is vital that the Office of Court Administration (OCA) be adequately funded. The courts of appeals rely on many of the services provided by OCA and, therefore, the courts of appeals fully support the exceptional items the OCA requests as part of its funding. More specifically, the courts of appeals strongly support the request for funding related to the acquisition of a new appellate case management system to replace the current system known as TAMES as well as a case-level data system.

If the Legislature appropriates a cost-of-living increase to state employees, the courts of appeals request that all court employees be included in any such cost-of-living increase.

Finally, the courts of appeals wish to express appreciation to and support for the Judicial Compensation Commission and the Legislature's efforts to strengthen the justice system by increasing judicial salaries to attract and retain a strong judiciary. The courts of appeals request the Legislature implement the Judicial Compensation

Administrator's Statement

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225 Fifth Court of Appeals District, Dallas

Commission's recommendations for an increase in judicial compensation.

Note: on Appropriated Receipts – At the direction of the LBB & Governor's Office, the Fifth Court of Appeals has included appropriated receipts in the amount of \$32,000 reflecting reimbursement for copies of opinions and other court documents. These amounts are merely an offset for additional expenses incurred by the Court and do not constitute additional funds available for general expenditures for the Court. The amount can vary significantly from year to year.

Administrative Statement – Supplemental Pages

Exhibit A

New Cases Filed by Fiscal Year

			Difference FY 26 from FY 25 to			Difference from FY 24 to		
	FY 24	FY 25	(Projected)	FY26	% Difference	FY26	% Difference	
1st/Houston	952	1,042	1,293	251	24%	341	36%	
2nd/Fort Worth	1,000	1,133	1,411	278	25%	411	41%	
3rd/Austin	922	940	1,193	253	27%	271	29%	
4th/San Antonio	861	864	951	87	10%	90	10%	
5th/Dallas	1,451	1,629	1,896	267	16%	445	31%	
6th/Texarkana	253	269	275	6	2%	22	9%	
7th/Amarillo	308	287	311	24	8%	3	1%	
8th/El Paso	337	221	283	62	28%	-54	-16%	Unusual, one-month spike occurred
9th/Beaumont	408	473	568	95	20%	160	39%	
10th/Waco	444	443	567	124	28%	123	28%	
11th/Eastland	300	290	358	68	23%	58	19%	
12th/Tyler	320	290	351	61	21%	31	10%	
13th/Corpus Christi	509	552	698	146	26%	189	37%	
14th/Houston	923	1,073	1,328	255	24%	405	44%	
15th/Statewide	N/A	135	120	-15	-11%	N/A	N/A	
Total FYTD	8,988	9,641	11,603	1,962	20%	2,615	29%	

EXHIBIT B

New Cases Filed by Fiscal Year - After Transfers

			Difference FY 26 from FY 25 to			Difference from FY 24 to		
	FY 24	FY 25	(Projected)	FY26	% Difference	FY26	% Difference	
1st/Houston	981	1,060	1,305	245	23%	324	33%	
2nd/Fort Worth	863	921	1,053	132	14%	190	22%	
3rd/Austin	732	834	879	45	5%	147	20%	
4th/San Antonio	644	782	931	149	19%	287	44%	
5th/Dallas	1,490	1,614	1,817	203	13%	327	22%	
6th/Texarkana	308	330	380	50	15%	72	23%	
7th/Amarillo	431	399	545	146	37%	114	26%	
8th/El Paso	453	319	428	109	34%	-25	-6%	Unusual, one-month spike occurred
9th/Beaumont	417	472	531	59	13%	114	27%	
10th/Waco	322	374	461	87	23%	139	43%	
11th/Eastland	325	330	411	81	25%	86	26%	
12th/Tyler	363	299	427	128	43%	64	18%	
13th/Corpus Christi	626	665	875	210	32%	249	40%	
14th/Houston	950	1,079	1,315	236	22%	365	38%	
15th/Statewide	N/A	254	244	-10	-4%	N/A	N/A	
Total FYTD	8,905	9,732	11,602	1,870	19%	2,697	30%	

Administrative Statement – Supplemental Pages

EXHIBIT C

Original Proceedings						Difference from FY 25 to FY26		Difference from FY 24 to FY26	
Court	22	23	24	25	FY 26 (projected)	% Difference	% Difference		
1	221	176	176	186	252	66	36%	76	43%
2	80	55	97	120	200	80	66%	103	106%
3	144	113	122	159	261	102	64%	139	114%
4	112	112	115	141	199	58	41%	84	73%
5	214	228	225	297	465	168	56%	240	106%
6	31	29	19	38	49	11	28%	30	157%
7	59	38	40	25	23	-2	-7%	-17	-42%
8	29	26	29	49	87	38	78%	58	201%
9	46	56	51	49	82	33	66%	31	60%
10	86	81	58	58	115	57	99%	57	99%
11	48	45	30	34	39	5	15%	9	30%
12	39	58	36	45	58	13	29%	22	61%
13	90	97	90	115	190	75	65%	100	111%
14	219	178	159	187	239	52	28%	80	50%
15	N/A	N/A	N/A	32	26	-6	-18%	N/A	N/A
Total original proceedings filed	1,418	1,292	1,247	1,535	2,286	751	49%	1,039	83%
New cases filed	8,034	8,668	8,988	9,641	11,603				
Orig proceedings as % of new cases filed	18%	15%	14%	16%	20%				

EXHIBIT D

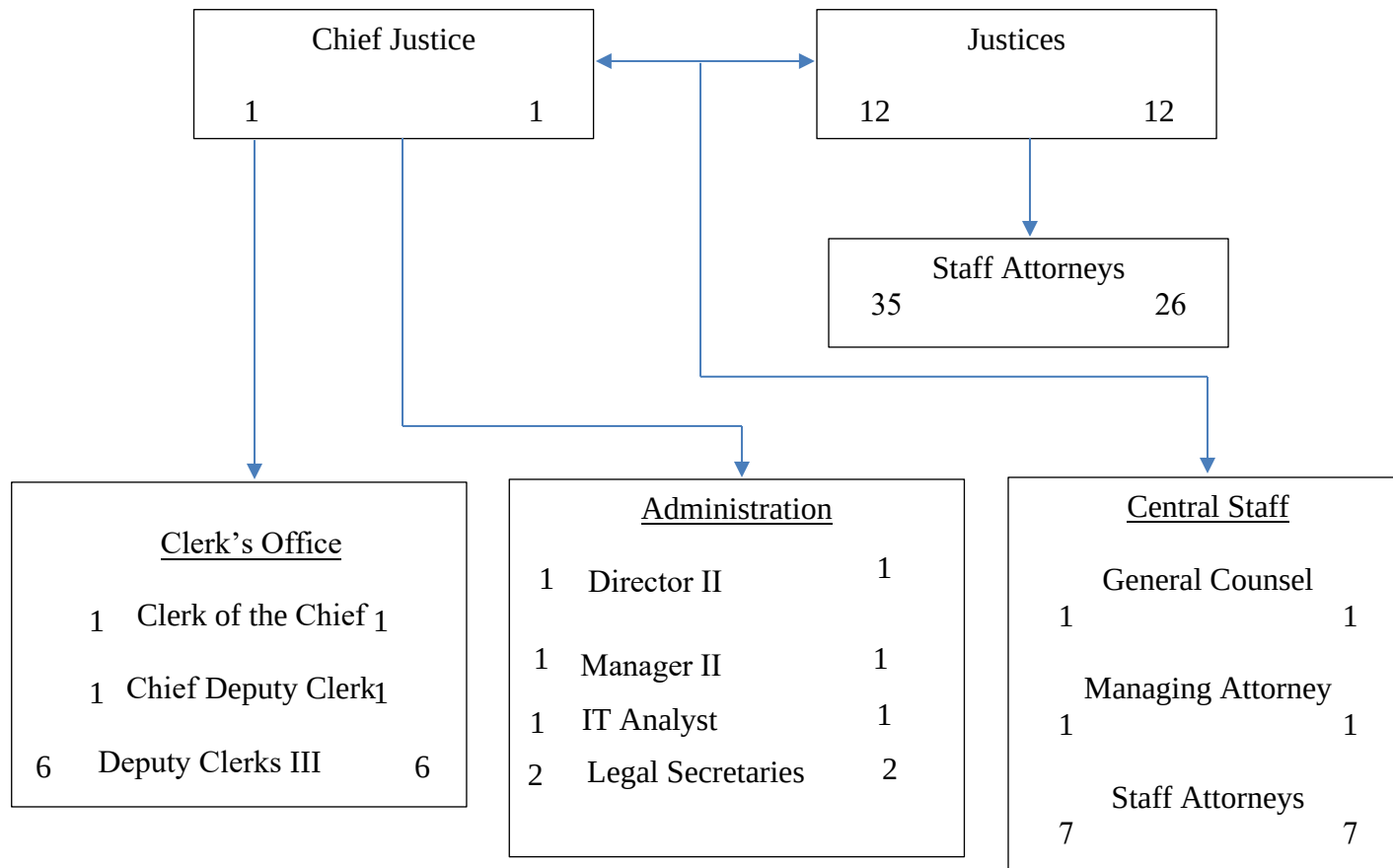
New Cases Filed by Pro Se Litigants						Difference from FY 25 to FY26		Difference from FY 24 to FY26	
Court	22	23	24	25	FY 26 (projected)	% Difference	% Difference		
1	242	228	226	289	357	68	24%	131	58%
2	198	221	267	334	439	105	31%	172	64%
3	205	202	229	320	447	127	40%	218	95%
4	144	151	141	201	265	64	32%	124	88%
5	373	420	527	600	728	128	21%	201	38%
6	42	50	39	67	95	28	41%	56	142%
7	122	119	90	108	124	16	15%	34	37%
8	61	66	70	62	158	96	154%	88	125%
9	73	99	86	97	177	80	83%	91	106%
10	144	120	118	125	191	66	53%	73	62%
11	110	103	93	103	95	-9	-8%	2	2%
12	77	56	77	72	92	20	28%	15	20%
13	136	148	148	167	254	87	52%	106	72%
14	252	246	236	321	429	108	34%	193	82%
15	N/A	N/A	N/A	33	89	56	169%	N/A	N/A
Total cases filed by pro se litigants	2,179	2,229	2,347	2,899	3,939	1,040	36%	1,592	68%
New cases filed	8,034	8,668	8,988	9,641	11,603				
% of new cases filed by pro se litigants	27%	26%	26%	30%	34%				

EXCEPTIONAL ITEM # 2

Organizational Chart

Fifth District Court of Appeals (225)

The number on the left is the number of budgeted positions for fiscal year 2027. The number on the right is the number of positions requested in order to retain adequate, quality legal and non-legal staff with salaries that are commensurate with their responsibilities and the salaries paid to like personnel at the other courts of appeals for the 2028--2029 biennium. (Effective date 09/01/2026)



Budget Overview - Biennial Amounts
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

225 Fifth Court of Appeals District, Dallas
Appropriation Years: 2028-29

	GENERAL REVENUE FUNDS		GR DEDICATED		FEDERAL FUNDS		OTHER FUNDS		ALL FUNDS		EXCEPTIONAL ITEM FUNDS
	2026-27	2028-29	2026-27	2028-29	2026-27	2028-29	2026-27	2028-29	2026-27	2028-29	2028-29
Goal: 1. Appellate Court Operations											
1.1.1. Appellate Court Operations	14,640,817	14,093,276					194,000	194,000	14,834,817	14,287,276	3,825,428
1.1.2. Appellate Justice Salaries	3,610,540	3,610,540					787,900	787,900	4,398,440	4,398,440	
Total, Goal	18,251,357	17,703,816					981,900	981,900	19,233,257	18,685,716	3,825,428
Total, Agency	18,251,357	17,703,816					981,900	981,900	19,233,257	18,685,716	3,825,428
Total FTEs									57.5	57.5	9.0

2.A. Summary of Base Request by Strategy

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90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

225 Fifth Court of Appeals District, Dallas

Goal / Objective / STRATEGY	Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
1 Appellate Court Operations					
1 Appellate Court Operations					
1 APPELLATE COURT OPERATIONS	6,548,228	7,303,932	7,530,885	7,143,638	7,143,638
2 APPELLATE JUSTICE SALARIES	2,199,220	2,199,220	2,199,220	2,199,220	2,199,220
TOTAL, GOAL 1	\$8,747,448	\$9,503,152	\$9,730,105	\$9,342,858	\$9,342,858
TOTAL, AGENCY STRATEGY REQUEST	\$8,747,448	\$9,503,152	\$9,730,105	\$9,342,858	\$9,342,858
TOTAL, AGENCY RIDER APPROPRIATIONS REQUEST*				\$0	\$0
GRAND TOTAL, AGENCY REQUEST	\$8,747,448	\$9,503,152	\$9,730,105	\$9,342,858	\$9,342,858

2.A. Summary of Base Request by Strategy

9/3/2026 2:57:41PM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

225 Fifth Court of Appeals District, Dallas

Goal / Objective / STRATEGY	Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>METHOD OF FINANCING:</u>					
General Revenue Funds:					
1 General Revenue Fund	8,256,498	9,012,202	9,239,155	8,851,908	8,851,908
SUBTOTAL	\$8,256,498	\$9,012,202	\$9,239,155	\$8,851,908	\$8,851,908
Other Funds:					
573 Judicial Fund	393,950	393,950	393,950	393,950	393,950
666 Appropriated Receipts	32,000	32,000	32,000	32,000	32,000
777 Interagency Contracts	65,000	65,000	65,000	65,000	65,000
SUBTOTAL	\$490,950	\$490,950	\$490,950	\$490,950	\$490,950
TOTAL, METHOD OF FINANCING	\$8,747,448	\$9,503,152	\$9,730,105	\$9,342,858	\$9,342,858

*Rider appropriations for the historical years are included in the strategy amounts.

2.B. Summary of Base Request by Method of Finance

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Automated Budget and Evaluation System of Texas (ABEST)

Agency code: 225		Agency name: Fifth Court of Appeals District, Dallas				
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>GENERAL REVENUE</u>						
<u>1</u> General Revenue Fund						
<i>REGULAR APPROPRIATIONS</i>						
Regular Appropriations from MOF Table (2024-25 GAA)						
		\$7,863,174	\$0	\$0	\$0	\$0
Regular Appropriations from MOF Table (2026-27 GAA)						
		\$0	\$8,109,698	\$8,336,651	\$0	\$0
Regular Appropriations from MOF Table (2028-2029)						
		\$0	\$0	\$0	\$8,851,908	\$8,851,908
<i>RIDER APPROPRIATION</i>						
Rider Appropriation						
Art. IX, Sec. 19.83, Appropriation for a Salary Increase for Court of Appeals Justices						
		\$0	\$561,525	\$561,525	\$0	\$0
<i>TRANSFERS</i>						
Transfers:						
Art. IX, Sec. 17.15, Appropriation for a Salary Increase for Licensed Attorneys						
(2026-2027 GAA)						
		\$0	\$340,979	\$340,979	\$0	\$0

2.B. Summary of Base Request by Method of Finance

9/3/2026 2:57:41PM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code: 225		Agency name: Fifth Court of Appeals District, Dallas				
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>GENERAL REVENUE</u>						
<i>LAPSED APPROPRIATIONS</i>						
Regular Appropriations from MOF Table (2024-25 GAA)						
		\$(10,444)	\$0	\$0	\$0	\$0
<i>UNEXPENDED BALANCES AUTHORITY</i>						
Art. IV, Special Provisions, Sec. 9., Unexpended Balance Authority (2024-2025 GAA)						
		\$403,768	\$0	\$0	\$0	\$0
TOTAL,	General Revenue Fund	\$8,256,498	\$9,012,202	\$9,239,155	\$8,851,908	\$8,851,908
TOTAL, ALL	GENERAL REVENUE	\$8,256,498	\$9,012,202	\$9,239,155	\$8,851,908	\$8,851,908

OTHER FUNDS**573** Judicial Fund No. 573*REGULAR APPROPRIATIONS*

Regular Appropriation From MOF Table (2024-2025 GAA)

\$393,950	\$0	\$0	\$0	\$0
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Regular Appropriations from MOF Table (2026-27 GAA)

\$0	\$393,950	\$393,950	\$0	\$0
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2.B. Summary of Base Request by Method of Finance

9/3/2026 2:57:41PM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code: 225		Agency name: Fifth Court of Appeals District, Dallas				
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>OTHER FUNDS</u>						
Regular Appropriations from MOF Table (20280-2029)		\$0	\$0	\$0	\$393,950	\$393,950
TOTAL,	Judicial Fund No. 573	\$393,950	\$393,950	\$393,950	\$393,950	\$393,950
<u>666</u>	Appropriated Receipts					
	<i>REGULAR APPROPRIATIONS</i>					
Regular Appropriations from MOF Table (2024-25 GAA)		\$32,000	\$0	\$0	\$0	\$0
Regular Appropriations from MOF Table (2026-27 GAA)		\$0	\$32,000	\$32,000	\$0	\$0
Regular Appropriations from MOF Table (2028-29 GAA)		\$0	\$0	\$0	\$32,000	\$32,000
TOTAL,	Appropriated Receipts	\$32,000	\$32,000	\$32,000	\$32,000	\$32,000
<u>777</u>	Interagency Contracts					
	<i>REGULAR APPROPRIATIONS</i>					

2.B. Summary of Base Request by Method of Finance

9/3/2026 2:57:41PM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code: 225		Agency name: Fifth Court of Appeals District, Dallas				
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>OTHER FUNDS</u>						
Regular Appropriations from MOF Table (2024-25 GAA)		\$65,000	\$0	\$0	\$0	\$0
Regular Appropriations from MOF Table (2026-27 GAA)		\$0	\$65,000	\$65,000	\$0	\$0
Regular Appropriations from MOF Table (2028-29 GAA)		\$0	\$0	\$0	\$65,000	\$65,000
TOTAL,	Interagency Contracts	\$65,000	\$65,000	\$65,000	\$65,000	\$65,000
TOTAL, ALL	OTHER FUNDS	\$490,950	\$490,950	\$490,950	\$490,950	\$490,950
GRAND TOTAL		\$8,747,448	\$9,503,152	\$9,730,105	\$9,342,858	\$9,342,858

2.B. Summary of Base Request by Method of Finance

9/3/2026 2:57:41PM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code: 225	Agency name: Fifth Court of Appeals District, Dallas				
METHOD OF FINANCING	Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
FULL-TIME-EQUIVALENT POSITIONS					
REGULAR APPROPRIATIONS					
Regular Appropriations from MOF Table (2024-25 GAA)	57.5	0.0	0.0	0.0	0.0
Regular Appropriations from MOF Table (2026-27 GAA)	0.0	57.5	57.5	0.0	0.0
Regular Appropriations from MOF Table (2028-29 GAA)	0.0	0.0	0.0	57.5	57.5
TOTAL, ADJUSTED FTES	57.5	57.5	57.5	57.5	57.5
NUMBER OF 100% FEDERALLY FUNDED FTEs					
	0.0	0.0	0.0	0.0	0.0

2.C. Summary of Base Request by Object of Expense

9/3/2026 2:57:42PM

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)**225 Fifth Court of Appeals District, Dallas**

OBJECT OF EXPENSE	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
1001 SALARIES AND WAGES	\$7,924,177	\$8,679,881	\$8,906,834	\$8,519,587	\$8,519,587
1002 OTHER PERSONNEL COSTS	\$329,977	\$329,977	\$329,977	\$329,977	\$329,977
2001 PROFESSIONAL FEES AND SERVICES	\$0	\$0	\$0	\$0	\$0
2003 CONSUMABLE SUPPLIES	\$22,500	\$22,500	\$22,500	\$22,500	\$22,500
2004 UTILITIES	\$50,000	\$50,000	\$50,000	\$50,000	\$50,000
2005 TRAVEL	\$30,000	\$30,000	\$30,000	\$30,000	\$30,000
2006 RENT - BUILDING	\$60,000	\$60,000	\$60,000	\$60,000	\$60,000
2007 RENT - MACHINE AND OTHER	\$25,000	\$25,000	\$25,000	\$25,000	\$25,000
2009 OTHER OPERATING EXPENSE	\$305,794	\$305,794	\$305,794	\$305,794	\$305,794
OOE Total (Excluding Riders)	\$8,747,448	\$9,503,152	\$9,730,105	\$9,342,858	\$9,342,858
OOE Total (Riders)					
Grand Total	\$8,747,448	\$9,503,152	\$9,730,105	\$9,342,858	\$9,342,858

2.D. Summary of Base Request Objective Outcomes
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation system of Texas (ABEST)

9/3/2026 2:57:42PM

225 Fifth Court of Appeals District, Dallas					
Goal/ Objective / Outcome	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
1 Appellate Court Operations					
1 Appellate Court Operations					
KEY 1 Clearance Rate					
	95.00%	95.00%	95.00%	95.00%	95.00%
KEY 2 Percentage of Cases Under Submission for Less Than One Year					
	99.00%	99.00%	99.00%	99.00%	99.00%
KEY 3 Percentage of Cases Pending for Less Than Two Years					
	99.00%	99.00%	99.00%	99.00%	99.00%

2.E. Summary of Exceptional Items Request
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/3/2026
TIME : 2:57:42PM

Agency code: 225		Agency name: Fifth Court of Appeals District, Dallas							
Priority	Item	2028			2029			Biennium	
		GR and GR/GR Dedicated	All Funds	FTEs	GR and GR Dedicated	All Funds	FTEs	GR and GR Dedicated	All Funds
1	3% Bud Restoration	\$273,771	\$273,771		\$273,770	\$273,770		\$547,541	\$547,541
2	Add'l 9 FTE Staff Attys	\$1,511,957	\$1,511,957	9.0	\$1,383,212	\$1,383,212	9.0	\$2,895,169	\$2,895,169
3	3% AY28-3% AY29	\$191,359	\$191,359		\$388,459	\$388,459		\$579,818	\$579,818
Total, Exceptional Items Request		\$1,977,087	\$1,977,087	9.0	\$2,045,441	\$2,045,441	9.0	\$4,022,528	\$4,022,528
Method of Financing									
	General Revenue	\$1,977,087	\$1,977,087		\$2,045,441	\$2,045,441		\$4,022,528	\$4,022,528
	General Revenue - Dedicated								
	Federal Funds								
	Other Funds								
		\$1,977,087	\$1,977,087		\$2,045,441	\$2,045,441		\$4,022,528	\$4,022,528
Full Time Equivalent Positions				9.0				9.0	
Number of 100% Federally Funded FTEs				0.0				0.0	

2.F. Summary of Total Request by Strategy
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE : 9/3/2026
TIME : 2:57:42PM

Agency code: 225	Agency name: Fifth Court of Appeals District, Dallas					
Goal/Objective/STRATEGY	Base 2028	Base 2029	Exceptional 2028	Exceptional 2029	Total Request 2028	Total Request 2029
1 Appellate Court Operations						
1 Appellate Court Operations						
1 APPELLATE COURT OPERATIONS	\$7,143,638	\$7,143,638	\$1,977,087	\$1,848,341	\$9,120,725	\$8,991,979
2 APPELLATE JUSTICE SALARIES	2,199,220	2,199,220	0	0	2,199,220	2,199,220
TOTAL, GOAL 1	\$9,342,858	\$9,342,858	\$1,977,087	\$1,848,341	\$11,319,945	\$11,191,199
TOTAL, AGENCY STRATEGY REQUEST	\$9,342,858	\$9,342,858	\$1,977,087	\$1,848,341	\$11,319,945	\$11,191,199
TOTAL, AGENCY RIDER APPROPRIATIONS REQUEST						
GRAND TOTAL, AGENCY REQUEST	\$9,342,858	\$9,342,858	\$1,977,087	\$1,848,341	\$11,319,945	\$11,191,199

2.F. Summary of Total Request by Strategy
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE : 9/3/2026
TIME : 2:57:42PM

Agency code: 225		Agency name: Fifth Court of Appeals District, Dallas					
Goal/Objective/STRATEGY		Base 2028	Base 2029	Exceptional 2028	Exceptional 2029	Total Request 2028	Total Request 2029
General Revenue Funds:							
1	General Revenue Fund	\$8,851,908	\$8,851,908	\$1,977,087	\$1,848,341	\$10,828,995	\$10,700,249
		\$8,851,908	\$8,851,908	\$1,977,087	\$1,848,341	\$10,828,995	\$10,700,249
Other Funds:							
573	Judicial Fund	393,950	393,950	0	0	393,950	393,950
666	Appropriated Receipts	32,000	32,000	0	0	32,000	32,000
777	Interagency Contracts	65,000	65,000	0	0	65,000	65,000
		\$490,950	\$490,950	\$0	\$0	\$490,950	\$490,950
TOTAL, METHOD OF FINANCING		\$9,342,858	\$9,342,858	\$1,977,087	\$1,848,341	\$11,319,945	\$11,191,199
FULL TIME EQUIVALENT POSITIONS		57.5	57.5	9.0	9.0	66.5	66.5

2.G. Summary of Total Request Objective Outcomes
 90th Regular Session, Agency Submission, Version 1
 Automated Budget and Evaluation system of Texas (ABEST)

Date : 9/3/2026
 Time: 2:57:43PM

Agency code: 225 Agency name: Fifth Court of Appeals District, Dallas

Goal/ Objective / Outcome

		BL 2028	BL 2029	Excp 2028	Excp 2029	Total Request 2028	Total Request 2029
1	Appellate Court Operations						
1	Appellate Court Operations						
KEY	1 Clearance Rate						
		95.00%	95.00%	95.00%	95.00%	95.00%	95.00%
KEY	2 Percentage of Cases Under Submission for Less Than One Year						
		99.00%	99.00%	99.00%	99.00%	99.00%	99.00%
KEY	3 Percentage of Cases Pending for Less Than Two Years						
		99.00%	99.00%	99.00%	99.00%	99.00%	99.00%

225 Fifth Court of Appeals District, Dallas

GOAL: 1 Appellate Court Operations
OBJECTIVE: 1 Appellate Court Operations
STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
Output Measures:						
1	Number of Civil Cases Disposed	1,142.00	1,358.00	1,575.00	1,732.00	1,905.00
2	Number of Criminal Cases Disposed	703.00	836.00	970.00	1,066.00	1,172.00
Explanatory/Input Measures:						
1	Number of Civil Cases Filed	1,129.00	1,343.00	1,557.00	1,712.00	1,883.00
2	Number of Criminal Cases Filed	500.00	595.00	690.00	759.00	835.00
3	Number of Cases Transferred in	1.00	0.00	0.00	0.00	0.00
4	Number of Cases Transferred out	16.00	80.00	80.00	80.00	80.00
Objects of Expense:						
1001	SALARIES AND WAGES	\$5,783,223	\$6,538,927	\$6,765,880	\$6,378,633	\$6,378,633
1002	OTHER PERSONNEL COSTS	\$291,711	\$291,711	\$291,711	\$291,711	\$291,711
2001	PROFESSIONAL FEES AND SERVICES	\$0	\$0	\$0	\$0	\$0
2003	CONSUMABLE SUPPLIES	\$22,500	\$22,500	\$22,500	\$22,500	\$22,500
2004	UTILITIES	\$50,000	\$50,000	\$50,000	\$50,000	\$50,000
2005	TRAVEL	\$30,000	\$30,000	\$30,000	\$30,000	\$30,000
2006	RENT - BUILDING	\$60,000	\$60,000	\$60,000	\$60,000	\$60,000
2007	RENT - MACHINE AND OTHER	\$25,000	\$25,000	\$25,000	\$25,000	\$25,000
2009	OTHER OPERATING EXPENSE	\$285,794	\$285,794	\$285,794	\$285,794	\$285,794

225 Fifth Court of Appeals District, Dallas

GOAL: 1 Appellate Court Operations
OBJECTIVE: 1 Appellate Court Operations
STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
TOTAL, OBJECT OF EXPENSE		\$6,548,228	\$7,303,932	\$7,530,885	\$7,143,638	\$7,143,638
Method of Financing:						
1	General Revenue Fund	\$6,451,228	\$7,206,932	\$7,433,885	\$7,046,638	\$7,046,638
SUBTOTAL, MOF (GENERAL REVENUE FUNDS)		\$6,451,228	\$7,206,932	\$7,433,885	\$7,046,638	\$7,046,638
Method of Financing:						
666	Appropriated Receipts	\$32,000	\$32,000	\$32,000	\$32,000	\$32,000
777	Interagency Contracts	\$65,000	\$65,000	\$65,000	\$65,000	\$65,000
SUBTOTAL, MOF (OTHER FUNDS)		\$97,000	\$97,000	\$97,000	\$97,000	\$97,000
TOTAL, METHOD OF FINANCE (INCLUDING RIDERS)					\$7,143,638	\$7,143,638
TOTAL, METHOD OF FINANCE (EXCLUDING RIDERS)		\$6,548,228	\$7,303,932	\$7,530,885	\$7,143,638	\$7,143,638
FULL TIME EQUIVALENT POSITIONS:		57.5	57.5	57.5	57.5	57.5
STRATEGY DESCRIPTION AND JUSTIFICATION:						

225 Fifth Court of Appeals District, Dallas

GOAL: 1 Appellate Court Operations
OBJECTIVE: 1 Appellate Court Operations
STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
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The Fifth Court of Appeals was created in 1893 pursuant to authority granted by Article V Section 6, Texas Constitution. This Court has intermediate appellate jurisdiction of civil and criminal cases appealed from lower courts: in civil cases where judgments rendered exceed \$100, exclusive of costs, and other civil proceedings as provided by law; in criminal cases of varying types but excluding post-conviction writs of habeas corpus and cases in which the death penalty has been imposed. The Fifth Court of Appeals has jurisdiction in six counties: Collin, Dallas, Hunt, Grayson, Kaufman, and Rockwall.

EXTERNAL/INTERNAL FACTORS IMPACTING STRATEGY:

Courts of appeals, by nature, are small agencies with highly specialized staff. The main factor driving this strategy is the need to attract and retain experienced legal staff, and highly-trained, knowledgeable support staff in order to process and dispose of an increasing caseload in a timely and efficient manner.

EXPLANATION OF BIENNIAL CHANGE (includes Rider amounts):

<u>STRATEGY BIENNIAL TOTAL - ALL FUNDS</u>		<u>BIENNIAL CHANGE</u>	<u>EXPLANATION OF BIENNIAL CHANGE</u>	
<u>Base Spending (Est 2026 + Bud 2027)</u>	<u>Baseline Request (BL 2028 + BL 2029)</u>		<u>\$ Amount</u>	<u>Explanation(s) of Amount (must specify MOFs and FTEs)</u>
\$14,834,817	\$14,287,276	\$(547,541)	\$(547,541)	Reduction to meet the 2028-29 GR baseline request. Reflected in OOE 1001 Salaries and Wages under Strategy A.1.1.
			\$(547,541)	Total of Explanation of Biennial Change

225 Fifth Court of Appeals District, Dallas

GOAL:	1	Appellate Court Operations	
OBJECTIVE:	1	Appellate Court Operations	Service Categories:
STRATEGY:	2	Appellate Justice Salaries. Estimated and Nontransferable	Service: NA Income: NA Age: NA

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
Objects of Expense:						
1001	SALARIES AND WAGES	\$2,140,954	\$2,140,954	\$2,140,954	\$2,140,954	\$2,140,954
1002	OTHER PERSONNEL COSTS	\$38,266	\$38,266	\$38,266	\$38,266	\$38,266
2009	OTHER OPERATING EXPENSE	\$20,000	\$20,000	\$20,000	\$20,000	\$20,000
TOTAL, OBJECT OF EXPENSE		\$2,199,220	\$2,199,220	\$2,199,220	\$2,199,220	\$2,199,220
Method of Financing:						
1	General Revenue Fund	\$1,805,270	\$1,805,270	\$1,805,270	\$1,805,270	\$1,805,270
SUBTOTAL, MOF (GENERAL REVENUE FUNDS)		\$1,805,270	\$1,805,270	\$1,805,270	\$1,805,270	\$1,805,270
Method of Financing:						
573	Judicial Fund	\$393,950	\$393,950	\$393,950	\$393,950	\$393,950
SUBTOTAL, MOF (OTHER FUNDS)		\$393,950	\$393,950	\$393,950	\$393,950	\$393,950
TOTAL, METHOD OF FINANCE (INCLUDING RIDERS)					\$2,199,220	\$2,199,220
TOTAL, METHOD OF FINANCE (EXCLUDING RIDERS)		\$2,199,220	\$2,199,220	\$2,199,220	\$2,199,220	\$2,199,220
FULL TIME EQUIVALENT POSITIONS:						

225 Fifth Court of Appeals District, Dallas

GOAL:	1	Appellate Court Operations	
OBJECTIVE:	1	Appellate Court Operations	Service Categories:
STRATEGY:	2	Appellate Justice Salaries. Estimated and Nontransferable	Service: NA Income: NA Age: NA

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
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STRATEGY DESCRIPTION AND JUSTIFICATION:

HB 2382 of the 86th Legislature established current judicial salaries and created separate appropriations for appellate justice salaries. As a result of this legislation, Strategy A.1.2. Appellate Justice Salaries was created and holds the estimated, non-transferable judicial salary funds for the Court. Appropriated funds in Strategy A.1.2. cannot be spent for any other purpose outside of judicial salaries and benefits.

EXTERNAL/INTERNAL FACTORS IMPACTING STRATEGY:

Judicial salaries are controlled by statutory authority and cannot be reduced without amendments to statute. Funding needs for Strategy A.1.2. are difficult to forecast due to the nature of judicial service. Retirements, resignations, election results, and deaths all impact the funding needed to meet judicial salary requirements at any given time. Therefore, the funding needed for Strategy A.1.2. is anticipated to fluctuate over the course of the biennium.

EXPLANATION OF BIENNIAL CHANGE (includes Rider amounts):

<u>STRATEGY BIENNIAL TOTAL - ALL FUNDS</u>		<u>BIENNIAL CHANGE</u>	<u>EXPLANATION OF BIENNIAL CHANGE</u>	
<u>Base Spending (Est 2026 + Bud 2027)</u>	<u>Baseline Request (BL 2028 + BL 2029)</u>		<u>\$ Amount</u>	<u>Explanation(s) of Amount (must specify MOFs and FTEs)</u>
\$4,398,440	\$4,398,440	\$0		
			\$0	Total of Explanation of Biennial Change

SUMMARY TOTALS:

OBJECTS OF EXPENSE:	\$8,747,448	\$9,503,152	\$9,730,105	\$9,342,858	\$9,342,858
METHODS OF FINANCE (INCLUDING RIDERS):				\$9,342,858	\$9,342,858
METHODS OF FINANCE (EXCLUDING RIDERS):	\$8,747,448	\$9,503,152	\$9,730,105	\$9,342,858	\$9,342,858
FULL TIME EQUIVALENT POSITIONS:	57.5	57.5	57.5	57.5	57.5

3.B. Rider Revisions and Additions Request

Agency Code: 225	Agency Name: Fifth Court of Appeals, District	Prepared By: M. Gasc	Date: 08/05/26	Request Level: Baseline
Current Rider Number	Page Number in 2026–2027 GAA	Proposed Rider Language		

2, 3, 4, 6,
7, 8

No changes recommended for Riders 2, 3, 4, 6, 7, and 8

5

IV-43

Sec. 5. Interagency Contracts for Assigned Judges for Appellate Courts. Out of funds appropriated in this Article to Strategies A.1.1., Appellate Court Operations, the Supreme Court of Texas, the Court of Criminal Appeals, or any of the 15 Courts of Appeals may enter into a contract with the Office of the Comptroller for fiscal years ~~2026~~2028 and ~~2027~~2029, for the purpose of reimbursing the Comptroller for amounts expended for judges assigned under Chapter 74, Government Code to hear cases of the appellate courts. It is the intent of the Legislature that any amounts reimbursed under this contract for judges assigned to the appellate courts are in addition to amounts appropriated for the use of assigned judges in Strategy A.1.3. Visiting Judges – Appellate in the Judiciary Section, Comptroller’s Department.

Adjusting the years in the rider for the 2028-2029 biennium.

9

IV-44

Sec. 9. Unexpended Balance Authority. Any unexpended and unobligated balances remaining in non-estimated strategies at the Supreme Court of Texas, Court of Criminal Appeals, 15 Courts of Appeals, Office of Court Administration, Office of Capital and Forensic Writs, Office of the State Prosecuting Attorney, State Commission on Judicial Conduct, and State Law Library as of August 31, ~~2026~~2028, are appropriated to the respective court or agency for the fiscal year beginning September 1, ~~2026~~2028, for the same purpose.

Updating the rider to adjust the years for the 2028-2029 biennium.

701

IV

Mileage Reimbursement for Appellate Court Staff. Appellate court staff who travel regularly to hear case dockets may be reimbursed for mileage at the state-approved rate when they travel for official state business in a personal vehicle. These staff are also exempt from the requirement to complete a comparison worksheet showing that mileage reimbursement for travel in a personal vehicle is more cost-effective than the use of a rental car.

4.A. Exceptional Item Request Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/3/2026
TIME: 2:57:44PM

Agency code: 225 Agency name: Fifth Court of Appeals District, Dallas

CODE	DESCRIPTION	Excp 2028	Excp 2029
	Item Name: Restore the 3% Budget Cut		
	Item Priority: 1		
	IT Component: No		
	Anticipated Out-year Costs: No		
	Involve Contracts > \$50,000: No		
	Includes Funding for the Following Strategy or Strategies: 01-01-01 Appellate Court Operations		
OBJECTS OF EXPENSE:			
1001	SALARIES AND WAGES	273,771	273,770
	TOTAL, OBJECT OF EXPENSE	\$273,771	\$273,770
METHOD OF FINANCING:			
1	General Revenue Fund	273,771	273,770
	TOTAL, METHOD OF FINANCING	\$273,771	\$273,770

DESCRIPTION / JUSTIFICATION:

the courts of appeals respectfully submit Exceptional Item #1 requesting the restoration of the 3% budget reduction so that their baseline funding will be the Fiscal Year 2027 budgeted levels

EXTERNAL/INTERNAL FACTORS:

address the highly negative and disproportionate impact of the required 3% reduction on the courts' funding, especially in light of the substantial increase in new case filings in Fiscal Year '26

PCLS TRACKING KEY:

4.A. Exceptional Item Request Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/3/2026
TIME: 2:57:44PM

Agency code: 225 Agency name: Fifth Court of Appeals District, Dallas

CODE	DESCRIPTION	Excp 2028	Excp 2029
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Item Name:	Additional Full Time Staff Attorneys
Item Priority:	2
IT Component:	No
Anticipated Out-year Costs:	No
Involve Contracts > \$50,000:	No
Includes Funding for the Following Strategy or Strategies:	01-01-01 Appellate Court Operations

OBJECTS OF EXPENSE:

1001	SALARIES AND WAGES	1,278,000	1,278,000
1002	OTHER PERSONNEL COSTS	2,160	2,160
2001	PROFESSIONAL FEES AND SERVICES	9,000	9,000
2003	CONSUMABLE SUPPLIES	4,500	4,500
2004	UTILITIES	12,645	10,260
2005	TRAVEL	27,000	27,000
2009	OTHER OPERATING EXPENSE	178,652	52,292
TOTAL, OBJECT OF EXPENSE		\$1,511,957	\$1,383,212

METHOD OF FINANCING:

1	General Revenue Fund	1,511,957	1,383,212
TOTAL, METHOD OF FINANCING		\$1,511,957	\$1,383,212

FULL-TIME EQUIVALENT POSITIONS (FTE):

9.00	9.00
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DESCRIPTION / JUSTIFICATION:

Due to the substantial increase in new case filings that the courts of appeals are experiencing in FY '26, and which are expected to continue for the foreseeable future

EXTERNAL/INTERNAL FACTORS:

Court of Appeals has experienced a 19% increase in new case filings from FY '25 to FY '26. And a 31% increase from FY '24 to FY '26. These increases are beyond the current capacity of the Fifth Court of Appeals to handle and comply with the Legislative mandates to give accelerated and preferential treatment to certain appeals.

PCLS TRACKING KEY:

4.A. Exceptional Item Request Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/3/2026
TIME: 2:57:44PM

Agency code: 225 Agency name: Fifth Court of Appeals District, Dallas

CODE	DESCRIPTION	Excp 2028	Excp 2029
	Item Name: Supreme Court 3% Increase In Staff Salaries AY28 & AY29		
	Item Priority: 3		
	IT Component: No		
	Anticipated Out-year Costs: No		
	Involve Contracts > \$50,000: No		
	Includes Funding for the Following Strategy or Strategies: 01-01-01 Appellate Court Operations		
OBJECTS OF EXPENSE:			
1001	SALARIES AND WAGES	191,359	388,459
	TOTAL, OBJECT OF EXPENSE	\$191,359	\$388,459
METHOD OF FINANCING:			
1	General Revenue Fund	191,359	388,459
	TOTAL, METHOD OF FINANCING	\$191,359	\$388,459

DESCRIPTION / JUSTIFICATION:

The court of appeals would respectfully request in this Exceptional Item #3 the same 3% increase for AY28 and a 3% increase for AY29, or such other increase as is approved for the supreme court and its judicial staff. This is necessary to keep the court of appeals' staff salaries within \$5,000 of the staff salaries at the supreme court.

EXTERNAL/INTERNAL FACTORS:

This is necessary to keep the court of appeals' staff salaries within \$5,000 of the staff salaries at the supreme court.

PCLS TRACKING KEY:

4.B. Exceptional Items Strategy Allocation Schedule
 90th Regular Session, Agency Submission, Version 1
 Automated Budget and Evaluation System of Texas (ABEST)

DATE: **9/3/2026**
 TIME: **2:57:44PM**

Agency code: 225		Agency name: Fifth Court of Appeals District, Dallas	
Code	Description	Excp 2028	Excp 2029
Item Name:		Restore the 3% Budget Cut	
Allocation to Strategy:		1-1-1	Appellate Court Operations
OBJECTS OF EXPENSE:			
	1001 SALARIES AND WAGES	273,771	273,770
TOTAL, OBJECT OF EXPENSE		\$273,771	\$273,770
METHOD OF FINANCING:			
	1 General Revenue Fund	273,771	273,770
TOTAL, METHOD OF FINANCING		\$273,771	\$273,770

4.B. Exceptional Items Strategy Allocation Schedule90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/3/2026

TIME: 2:57:44PM

Agency code:	225	Agency name:	Fifth Court of Appeals District, Dallas		
Code	Description			Excp 2028	Excp 2029
Item Name:	Additional Full Time Staff Attorneys				
Allocation to Strategy:	1-1-1	Appellate Court Operations			
OBJECTS OF EXPENSE:					
1001	SALARIES AND WAGES			1,278,000	1,278,000
1002	OTHER PERSONNEL COSTS			2,160	2,160
2001	PROFESSIONAL FEES AND SERVICES			9,000	9,000
2003	CONSUMABLE SUPPLIES			4,500	4,500
2004	UTILITIES			12,645	10,260
2005	TRAVEL			27,000	27,000
2009	OTHER OPERATING EXPENSE			178,652	52,292
TOTAL, OBJECT OF EXPENSE				\$1,511,957	\$1,383,212
METHOD OF FINANCING:					
1	General Revenue Fund			1,511,957	1,383,212
TOTAL, METHOD OF FINANCING				\$1,511,957	\$1,383,212
FULL-TIME EQUIVALENT POSITIONS (FTE):				9.0	9.0

Agency code: 225		Agency name: Fifth Court of Appeals District, Dallas	
Code	Description	Excp 2028	Excp 2029
Item Name:		Supreme Court 3% Increase In Staff Salaries AY28 & AY29	
Allocation to Strategy:		1-1-1	Appellate Court Operations
OBJECTS OF EXPENSE:			
1001 SALARIES AND WAGES		191,359	388,459
TOTAL, OBJECT OF EXPENSE		\$191,359	\$388,459
METHOD OF FINANCING:			
1 General Revenue Fund		191,359	388,459
TOTAL, METHOD OF FINANCING		\$191,359	\$388,459

4.C. Exceptional Items Strategy Request
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/3/2026
TIME: 2:57:44PM

Agency Code: **225** Agency name: **Fifth Court of Appeals District, Dallas**

GOAL: 1 Appellate Court Operations

OBJECTIVE: 1 Appellate Court Operations

STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Excp 2028	Excp 2029
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STRATEGY IMPACT ON OUTCOME MEASURES:

<u>1</u> Clearance Rate	95.00 %	95.00 %
<u>2</u> Percentage of Cases Under Submission for Less Than One Year	99.00 %	99.00 %
<u>3</u> Percentage of Cases Pending for Less Than Two Years	99.00 %	99.00 %

OUTPUT MEASURES:

<u>1</u> Number of Civil Cases Disposed	2,095.00	2,304.00
<u>2</u> Number of Criminal Cases Disposed	1,289.00	1,417.00

EXPLANATORY/INPUT MEASURES:

<u>1</u> Number of Civil Cases Filed	2,071.00	2,278.00
<u>2</u> Number of Criminal Cases Filed	918.00	1,009.00
<u>4</u> Number of Cases Transferred out	80.00	80.00

OBJECTS OF EXPENSE:

1001 SALARIES AND WAGES	1,743,130	1,743,129
1002 OTHER PERSONNEL COSTS	2,160	2,160
2001 PROFESSIONAL FEES AND SERVICES	9,000	9,000
2003 CONSUMABLE SUPPLIES	4,500	4,500
2004 UTILITIES	12,645	10,260
2005 TRAVEL	27,000	27,000
2009 OTHER OPERATING EXPENSE	178,652	52,292

Total, Objects of Expense

\$1,977,087	\$1,848,341
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METHOD OF FINANCING:

1 General Revenue Fund	1,977,087	1,848,341
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4.C. Exceptional Items Strategy Request
 90th Regular Session, Agency Submission, Version 1
 Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/3/2026
TIME: 2:57:44PM

Agency Code: **225** Agency name: **Fifth Court of Appeals District, Dallas**

GOAL: 1 Appellate Court Operations

OBJECTIVE: 1 Appellate Court Operations

STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Excp 2028	Excp 2029
	Total, Method of Finance	\$1,977,087	\$1,848,341
	FULL-TIME EQUIVALENT POSITIONS (FTE):	9.0	9.0

EXCEPTIONAL ITEM(S) INCLUDED IN STRATEGY:

Restore the 3% Budget Cut

Additional Full Time Staff Attorneys

Supreme Court 3% Increase In Staff Salaries AY28 & AY29

6.A. Historically Underutilized Business Supporting Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

Date: 9/3/2026
Time: 2:57:44PM

Agency Code: 225 Agency: Fifth Court of Appeals District, Dallas

COMPARISON TO STATEWIDE HUB PROCUREMENT GOALS

A. Fiscal Year - HUB Expenditure Information

Statewide HUB Goals	Procurement Category	% Goal	HUB Expenditures FY 2024			Total Expenditures		HUB Expenditures FY 2025			Total Expenditures	
			% Actual	Diff	Actual \$	FY 2024	% Goal	% Actual	Diff	Actual \$	FY 2025	
11.2%	Heavy Construction	11.2 %	0.0%	-11.2%	\$0	\$0	11.2 %	0.0%	-11.2%	\$0	\$0	
21.1%	Building Construction	21.1 %	0.0%	-21.1%	\$0	\$0	21.1 %	0.0%	-21.1%	\$0	\$0	
32.9%	Special Trade	32.9 %	0.0%	-32.9%	\$0	\$0	32.9 %	0.0%	-32.9%	\$0	\$630	
23.7%	Professional Services	23.7 %	0.0%	-23.7%	\$0	\$0	23.7 %	0.0%	-23.7%	\$0	\$0	
26.0%	Other Services	26.0 %	0.0%	-26.0%	\$0	\$168,586	26.0 %	0.5%	-25.5%	\$858	\$172,936	
21.1%	Commodities	21.1 %	3.9%	-17.2%	\$3,428	\$87,602	21.1 %	7.6%	-13.5%	\$10,368	\$137,210	
	Total Expenditures		1.3%		\$3,428	\$256,188		3.6%		\$11,226	\$310,776	

B. Assessment of Attainment of HUB Procurement Goals

Attainment:

The Fifth Court of Appeals is committed to maximizing participation by Historically Underutilized Businesses (HUBs) in all procurement opportunities. Due to the Court's size, limited procurement volume, and the specialized nature of many purchases, annual HUB utilization may fluctuate. The Court continues to make good-faith efforts to identify qualified HUB vendors and increase HUB participation whenever practicable and consistent with state purchasing requirements.

Applicability:

The Court is subject to the State of Texas Historically Underutilized Business (HUB) Program and complies with all applicable statutes, rules, and Comptroller requirements governing HUB participation. The Court incorporates HUB considerations into its procurement process for applicable purchases and contracts.

Factors Affecting Attainment:

The Court's ability to achieve HUB participation goals is affected by its relatively small operating budget, limited number of procurement opportunities, and the specialized legal, judicial, and technology-related services required to support court operations. Many purchases are made through statewide contracts or other cooperative purchasing programs, which may limit opportunities for direct HUB solicitation.

C. Good-Faith Efforts to Increase HUB Participation

Outreach Efforts and Mentor-Protégé Programs:

The Fifth Court of Appeals does not administer a formal HUB Mentor-Protégé Program due to the size of the agency and the limited volume of procurements. The Court participates in the statewide HUB Program and encourages qualified HUB vendors to compete for procurement opportunities whenever applicable.

6.A. Historically Underutilized Business Supporting Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

Date: **9/3/2026**
Time: **2:57:44PM**

Agency Code: **225** Agency: **Fifth Court of Appeals District, Dallas**

HUB Program Staffing:

The Court Business Administrator serves as the agency's HUB point of contact and is responsible for coordinating procurement activities, monitoring HUB participation, and ensuring compliance with applicable state purchasing and HUB requirements.ts.

Current and Future Good-Faith Efforts:

The Fifth Court of Appeals remains committed to making good-faith efforts to increase Historically Underutilized Business (HUB) participation in agency procurements. The Court utilizes the Texas Comptroller's HUB Directory and the Centralized Master Bidders List (CMBL), solicits certified HUB vendors whenever practicable, and follows all applicable state purchasing laws and HUB requirements. Procurement specifications are developed to encourage competition, and the Court continues to identify opportunities to increase HUB participation while ensuring compliance with applicable procurement statutes and rules. These efforts are consistent with the statewide HUB Program and the agency's commitment to responsible stewardship of public funds.

6.H. Estimated Total of Agency Funds Outside the GAA

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/3/2026
TIME : 2:57:45PM

Agency code: 225

Agency name: Fifth Court of Appeals District, Dallas

Fund Name	2028-2029 Outside GAA Pattern Total	Estimated Beginning Balance in 2026	FY 2026 Revenue	FY 2027 Revenue	FY 2026 - 2027 Total	Estimated Beginning Balance in 2028	FY 2028 Revenue	FY 2029 Revenue	FY 2028 - 2029 Total
Chapter 22 Appellate Fund	1,778,000	1,872,000	279,000	319,000	2,470,000	998,000	380,000	400,000	1,778,000
Total Sources:	\$1,778,000	\$1,872,000	\$279,000	\$319,000	\$2,470,000	\$998,000	\$380,000	\$400,000	\$1,778,000

6.H. Estimated Total of Agency Funds Outside the GAA

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: **9/3/2026**
TIME : **2:57:45PM**

Agency code: **225**

Agency name: **Fifth Court of Appeals District, Dallas**

Fund Name	Constitutional or Statutory Creation and Use of Funds	Method of Calculation and Revenue Assumption	FY 2028 - 2029 Total
Chapter 22 Appellate Fund	Chapter 22	Appellate Fees Dallas County	\$1,778,000

General Revenue (GR) & General Revenue Dedicated (GR-D) Baseline

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/3/2026

TIME: 2:58:02PM

Agency code: 225

Agency name: Fifth Court of Appeals District, Dallas

GR Baseline Request Limit = \$17,703,816

GR-D Baseline Request Limit = \$0

Strategy/Strategy Option/Rider										Page #
2028 Funds				2029 Funds				Biennial Cumulative GR	Biennial Cumulative Ded	
FTEs	Total	GR	Ded	FTEs	Total	GR	Ded			
Strategy: 1 - 1 - 1	Appellate Court Operations									
57.5	7,143,638	7,046,638	0	57.5	7,143,638	7,046,638	0	14,093,276	0	
Strategy: 1 - 1 - 2	Appellate Justice Salaries. Estimated and Nontransferable									
0.0	2,199,220	1,805,270	0	0.0	2,199,220	1,805,270	0	17,703,816	0	
57.5				57.5				*****GR Baseline Request Limit=\$17,703,816*****		
Excp Item: 1	Restore the 3% Budget Cut									
0.0	273,771	273,771	0	0.0	273,770	273,770	0	18,251,357	0	
Strategy Detail for Excp Item: 1										
Strategy: 1 - 1 - 1	Appellate Court Operations									
0.0	273,771	273,771	0	0.0	273,770	273,770	0			
Excp Item: 2	Additional Full Time Staff Attorneys									
9.0	1,511,957	1,511,957	0	9.0	1,383,212	1,383,212	0	21,146,526	0	
Strategy Detail for Excp Item: 2										
Strategy: 1 - 1 - 1	Appellate Court Operations									
9.0	1,511,957	1,511,957	0	9.0	1,383,212	1,383,212	0			
Excp Item: 3	Supreme Court 3% Increase In Staff Salaries AY28 & AY29									
0.0	191,359	191,359	0	0.0	388,459	388,459	0	21,726,344	0	
Strategy Detail for Excp Item: 3										
Strategy: 1 - 1 - 1	Appellate Court Operations									
0.0	191,359	191,359	0	0.0	388,459	388,459	0			
66.5	\$11,319,945	\$10,828,995	\$0	66.5	\$11,388,299	\$10,897,349	0			